REPORTABLE (48)

1. MOSES MPOFU
v
THE STATE

2. MIKE CHIMOMBE
v
THE STATE

SUPREME COURT OF ZIMBABWE
HARARE: 7 APRIL 2026 & 4 AUGUST 2026

APPLICATION 1 SC 330/26

T. L. Mapuranga with *T. S. T. Dzvetero*, for the applicant

W. Mabhaudhi, for the respondent

APPLICATION 2 SC 155/26

L. Madhuku with *A. Mugiya*, for the applicant

W. Mabhaudhi, for the respondent

IN CHAMBERS

CHIWESHE JA: These are two separate chamber applications for leave to appeal made in terms of s 44 (2) of the High Court Act [*Chapter 7:06*] (the Act) as read with r 27 of the Supreme Court Rules, 2025. Both applications arise out of the conviction of both applicants on a charge of fraud by the High Court (the court *a quo*). I heard the applications separately on the same date. For the purpose of convenience, I decided to dispose of both applications under one composite judgment. In this regard, it must be noted that the applicants were jointly charged

with Moses Mpofu arraigned as the main perpetrator and Mike Chimombe as the co-perpetrator *a quo*.

I shall refer to Moses Mpofu and his application as "the first applicant and the first application", respectively. Similarly, I shall refer to Mike Chimombe and his application as "the second applicant" and "the second application" respectively.

THE FACTS

The applicants appeared before the court *a quo* charged with fraud as defined under s 136 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Code). Despite their pleas of not guilty, the court *a quo*, after a full trial, found each applicant guilty as charged. It sentenced the first applicant to 22 years imprisonment, 3 years of which were suspended for 5 years on condition that he did not commit, within that period, any offence involving dishonesty. Of the remaining 19 years, 4 years were suspended on condition that he pays restitution to the fiscus in the sum of USD2 060 250.60 through the Registrar of the court *a quo* no later than 28 February 2026. The total suspended period was thus 7 years, leaving the effective period to be served at 15 years. The second applicant was sentenced to imprisonment for 17 years of which 3 years was suspended for 5 years on condition that he did not, within that period, commit any offence involving dishonesty. A further 2 years was suspended on condition that he pays restitution to the fiscus in the sum of USD964 064.64 through the Registrar of the court *a quo* no later than 28 February 2026. The total suspended period was thus 5 years, leaving an effective period of 12 years imprisonment.

The allegations leading to the applicants' conviction in the court *a quo* are as follows. Sometime in 2021, the Government of Zimbabwe set up a Presidential Goat Pass-on

Scheme (the Scheme) intended to alleviate poverty among the less privileged persons across the country's ten provinces. The target was to procure 500 000 special goat breeds for distribution to households throughout Zimbabwe. The Scheme was to be administered by the Ministry of Lands, Agricultural, Water, Fisheries and Rural Development (the Ministry). In pursuance of that mandate, the Ministry advertised a tender for the supply and delivery of the goats. It did so on 3 September 2021.

Each bidding company was, *inter alia*, required to provide, as part of its bidding documents, its ZIMRA tax clearance certificate for the year 2021 and a valid NSSA compliance certificate for the same period. In addition, each bidding company was required to submit its certificate of incorporation and a list of its directors under FORM CR14, a clear statement of the payment terms and the delivery period.

Four companies submitted their bids for the tender. These included Blackdeck Livestock and Poultry Farming (Pvt) Ltd, allegedly represented by the applicants. The State alleged that the applicants falsely represented, in their tender documents, that the company was duly registered in terms of the laws of Zimbabwe and that it held valid ZIMRA tax clearance and NSSA compliance certificates for the year 2021. However, the applicants had submitted, in support of the company's bid, tax clearance and compliance certificates belonging to another entity, namely, Blackdeck (Pvt) Ltd. Investigations by NSSA and ZIMRA revealed that the certificates and QR codes submitted by the applicants had in fact been issued to Skywalk Investments (Pvt) Ltd, that Blackdeck (Pvt) Ltd had been deregistered from the NSSA system in 2016 and that the company in whose name the tender documents had been submitted, namely Blackdeck Livestock and Poultry Farming, itself was not a registered company.

It had been on the strength of these misrepresentations that the Ministry was induced into awarding the tender to that company and, resultantly, the execution of the contract to supply and deliver the goats. The contract is dated 16 November 2021. In terms of the contract, the company was required to supply and deliver 632 001 goats valued at USD8 757 168.50. It was alleged that the applicants had actively participated in meetings with the Ministry as representatives of the company. In that capacity, they negotiated the terms of the contract. The applicants represented to the Ministry that they had sufficient livestock at various holding sites in the country. The Ministry accordingly agreed to make an advance 30% payment to the company. It transferred the sum of ZWL$1.6 billion into Blackdeck (Pvt) Ltd bank account. The State alleged that substantial sums of money were subsequently transferred from that account to Millytake Enterprises (Pvt) Ltd, a company associated with one of the applicants.

The company failed to deliver the goats as scheduled. When asked about this delay, the applicants told the Ministry that they had 32 500 goats that were available at their holding sites. However, inspections by the Ministry officials revealed that only 3 713 goats were available at the holding sites. Following these developments, the Ministry cancelled the contract. It did so on 22 August 2022. According to Ministry officials, only 4 208 goats valued at USD331 445.25 had been supplied by the date of cancellation of the contract. As a result, the Ministry suffered actual prejudice in the sum of USD7.38 million. It was alleged that the applicants had diverted these funds to their own use. In their defence, the applicants raised a preliminary issue in terms of which they challenged the legality and constitutionality of their arrest, detention and continued detention and prosecution. They further indicated their intention to invoke s 175(4) of the Constitution and petition the Constitutional Court for a determination as to whether their constitutional rights under ss 50(1), 56(1), 69(1) and 70(3) of the Constitution had been violated. On the merits, the applicants

denied the allegations of fraud maintaining that they neither personally nor in common purpose with anyone else made any representation to the Ministry regarding the registration, tax clearance or NSSA compliance certificates or the operational capacity of Blackdeck Livestock and Poultry Farming (Pvt) Ltd. They contended that they had not prepared, obtained nor submitted the bidding documents in question and that the compliance certificates relied upon by the State were sourced by an independent tax and compliance expert engaged by the company. They further submitted that they were not the sole directors of the company and could not be held personally liable for every corporate act as decisions were made collectively by directors and shareholders. They also denied using a fictitious entity asserting that the company Blackdeck Livestock and Poultry Farming (Pvt) Ltd was merely a trade name of Blackdeck (Pvt) Ltd and pointed out that all documents submitted to the Ministry and payments made by the Ministry related to Blackdeck (Pvt) Ltd.

The applicants further argued that the matter was purely civil in nature arising from a contractual dispute between the company and the Ministry, and not from any criminal conduct. They maintained that the company had the capacity to supply the contracted livestock and that any failure to perform arose from the Ministry's unlawful cancellation of the contract, currency constrains and the freezing of the company's bank accounts at a time when the company sought foreign currency to procure the goats. They said that the State had not suffered any prejudice as it had not exhausted its contractual remedies, including recourse against the guarantor and that for that reason, the criminal proceedings were unfounded. Further, they said that the criminal proceedings were politically motivated and improperly initiated by the Zimbabwe Anti-Corruption Commission (ZACC) at a time when the parties were still involved in discussions aimed at

resolving their contractual dispute. However, the court *a quo* convicted the appellants as charged and meted out sentences as stated above.

Aggrieved by the decision of the court *a quo*, the applicants sought leave from the court *a quo* to appeal against their convictions and sentences. The court *a quo* dismissed their applications for leave to appeal on the grounds that there were no prospects of success in the intended appeals. The applicants have now approached this Court seeking such leave as they are entitled to do in terms of s 44 (2) (b) of the High Court Act [*Chapter 7:06*] as read with r 25 of the Supreme Court Rules, 2025. Each applicant has filed a draft notice of appeal outlining the grounds of appeal to be relied upon in the intended appeals and the relief that will be sought.

THE LAW

In criminal cases, such as the present, the right to appeal from the High Court to the Supreme Court is governed by the provisions of s 44 of the High Court Act [*Chapter 7:06*] (the Act).

Section 44 (2) of the Act provides, *inter alia*, as follows:

"(2) A person convicted on a criminal trial held by the High Court-

(a) may appeal to the Supreme Court against his conviction on any ground of appeal which involves a question of law alone;

(b) may, with the leave of a judge of the High Court, or, if a judge of the High Court refuses to grant leave, with the leave of a judge of the Supreme Court, appeal to the Supreme Court against his conviction on any ground of appeal which involves a question of fact alone or a question of mixed law and fact: provided …

(c) …

(d) …

(e) …"

Subsection (3) of the same section provides as follows:

> "(3) For the purposes of subs (2), a ground of appeal that there was no or insufficient evidence to justify a conviction shall be deemed to be a ground of appeal which involves a question of fact alone."

It is trite that in order to succeed in an application for leave to appeal an applicant must show that he or she has prospects of success in the intended appeal. In *Chikurunhe & Ors* v *Zimbabwe Financial Holdings (Pvt) Ltd* SC 10/08 at p 5 this Court held that:

> "The party seeking leave must show, *inter alia*, that he has prospects of success on appeal. In other words leave is not granted simply because a party has sought such leave."

It has been held that in order to succeed in an application for leave, it is not enough for the applicant to make out an arguable case. In *S* v *McGown* 1995 (2) ZLR 81 (S) this Court stated as follows:

> "It is not enough merely to make out an arguable case, for there are very few cases which are not 'arguable' in the wide sense of the word."

See also *Essop* v *S* 2016 ZASCA 114.

THE FIRST APPLICATION SC 330/26

The first applicant`s application for leave to appeal was filed out of time. For that reason, he sought condonation for late filing of his application. He attributes this infraction of the Rules to the fact that having been incarcerated, he was unable to timeously brief an experienced legal practitioner. The respondent has not opposed the application for condonation and, there being no reason why that application should not succeed, it ought to be granted. It is hereby granted.

At the hearing of the application for leave to appeal, Mr *Mabhaudhi*, for the respondent, raised a point *in limine* to the effect that the application was fatally defective on account of the fact that the grounds of appeal in the draft notice of appeal presented before this Court were materially different from the grounds relied upon by the applicant in his application for leave to appeal before the court *a quo.* No leave had been sought to depart from the grounds presented *a quo*, and, for that reason, the respondent prayed that the application be struck off the roll. Mr *Mapuranga*, for the applicant, argued to the contrary. He relied on the decision of this Court in *University of Zimbabwe* v *Kwanele N. Jirira & Anor* SC 12/18 wherein BHUNU JA held as follows at p 3 of the judgment:

> "When a judge of the Supreme Court sits in chambers to decide the application for leave to appeal he does not treat the application as an appeal against the refusal to grant leave by the court *a quo*. He simply decides the matter on the merits as if it was a fresh application before him or her. For that reason, while he may consider the criticisms levelled against the judge in the court *a quo*, these are not overriding considerations because he makes his own independent fresh determination on the basis of the papers and arguments placed before him/her."

Based on these sentiments, I agreed with Mr *Mapuranga*`s submission that the present application is not a review of or an appeal against the decision of the court *a quo* to dismiss the application before it for leave to appeal to this Court. It is a fresh and independent application to be considered on its own merits. The fact that the grounds of appeal presented to me are materially different from those presented in the court *a quo* cannot therefore render the application before me a nullity to be struck off the roll. It was for these reasons that I dismissed the point "*in limine*".

On the merits, Mr *Mapuranga* submitted that the application for leave to appeal against conviction and sentence had merit because there were prospects of success in the intended appeal. He attacked the court *a quo*`s decision to convict the applicant on the following basis.

Firstly, he argued that no evidence was adduced *a quo* proving that the applicant was the author of the fake documents, namely the tax clearance certificate and the NSSA compliance certificate. These had been sourced by an independent expert. In any event, the applicant was not involved in the compilation and submission of the tender documents in favour of Blackdeck Livestock and Poultry Farming (Pvt) Ltd. He had not signed the bid documents and, in any event, the findings of the court *a quo* can only be regarded as confirmation of the existence of a contractual dispute and not criminal liability.

With regards sentence, counsel argued that the sentence imposed by the court *a quo* was unprecedented in its severity. He argued that the applicant had shown that a different court could reasonably mete out a different sentence.

Mr *Dzvetero,* co-counsel for the applicant, also submitted that grounds of appeal numbers 2.3 and 4 attack the decisions of the court *a quo* on points of law and not points of fact or mixed fact and law. Accordingly, in terms of s 44 (2) (a) of the High Court Act [*Chapter 7:06*], those grounds are appealable without leave of court. The State did not make any submissions to the contrary, leaving Mr *Dzvetero*'s assertions virtually unopposed.

Mr *Mabhaudhi,* for the respondent, argued that there was no need for the applicants to seek the services of a consultant to obtain the ZIMRA tax and NSSA compliance certificates as both organisations utilized self service facilities. In any event, the applicant had not disclosed the identity of the consultant. In that regard, the applicant had not been candid with the court *a quo.* The applicants later claimed that the consultant had since died but failed to produce the death certificate at trial. Counsel submitted that evidence had proved that Blackdeck (Pvt) Ltd had been deregistered in 2016 and, for that reason, that company could not have produced the relevant bid

documents for 2021 when the offence was committed. No evidence to the contrary had been produced by the applicant. Counsel further submitted that the applicant was liable as he was a director of Blackdeck (Pvt) Ltd and that he had signed the contract document on behalf of a non-existent company, namely Blackdeck Livestock and Poultry Farming (Pvt) Ltd. Further, it was also established that the applicant had subsequently signed the addendum to that contract.

Mr *Mabhaudhi,* further submitted that the court *a quo`s* finding that the applicant had deliberately and fraudulently used documents relating to Blackdeck (Pvt) Ltd and Skywalk (Pvt) Ltd to support the bid filed in the name of Blackdeck Livestock and Poultry Farming (Pvt) Ltd, itself a non-existent entity, could not be faulted. He submitted that this was an orchestrated fraud in that no one would ultimately be held accountable as Blackdeck Livestock and Poultry Farming (Pvt) Ltd had no directors as it was a fictitious entity. He contested the assertion by the applicant that Blackdeck Livestock and Poultry Farming (Pvt) Ltd was the trade name of Blackdeck (Pvt) Ltd as such trade had not been registered as required by s 29 of the Companies and Other Business Entities Act [*Chapter 24:31*].

Mr *Mabhaudhi,* further submitted that the applicant did not have much in terms of goats in his holding pens despite promises to the contrary. Further, the applicant failed to refund the monies advanced to him by the Ministry. He said that it was clear that the funds had been converted to applicant's personal use. There was substantial prejudice to the fiscus. He averred that the offence had been committed under aggravating circumstances.

With regards sentence, Mr *Mabhaudhi* submitted that the sentence imposed was within the parameters of the Sentencing Guidelines in terms of which the presumptive sentence is

20 years imprisonment. That being the case, the effective sentence of 15 years imprisonment imposed by the court *a quo* was fair, if not lenient.

Finally, he submitted that in the circumstances the applicant did not enjoy prospects of success on appeal against conviction or sentence. He urged the court to dismiss the application for leave to appeal.

ISSUES FOR DETERMINATION

The only issue for determination is whether the first applicant's application for leave to appeal the judgment of the court *a quo* has merit.

ANALYSIS

The first application SC 330/26

In order to assess the applicant's prospects of success on appeal, one must examine the grounds of appeal upon which the applicant intends to challenge the judgment of the court *a quo*. The applicant's grounds of appeal are set out as follows:

"**AGAINST CONVICTION**

1. The court *a quo* grossly misdirected itself on the facts in finding that the tender bid was submitted by Blackdeck Livestock and Poultry Farming as a distinct persona, when the tender bid itself showed that the bid was submitted by Blackdeck (Pvt) Ltd, which used the trade names Blackdeck Livestock and Poultry Farming and Colenso Farm.

2. The court *a quo* erred at law in failing to appreciate that the charge contained only three acts of misrepresentation - representing a forged ZIMRA tax clearance certificate, a forged NSSA clearance certificate and deception on the personality of Blackdeck Livestock and Poultry Farming – such that it proceeded on a premise that treated the consequences and prejudice of the alleged fault as part of the alleged misrepresentation.

3. The court *a quo* erred at law in convicting the appellant on mutually contradictory findings that Blackdeck Livestock and Poultry Farming was not an existent persona while at the same time ascribing criminal liability on the appellant under s 277 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] for being a director of a

company – Blackdeck (Private) Limited – which was incorporated according to the law.

4. The court *a quo* erred in finding that the use of a trade name for a recognized and registered company on the cover of a tender bid document and some of the tender documents amounted to a fault, when the law recognizes that trade names may be used in business and even in lawsuits.

5. The court *a quo* erred at law in finding that s 277 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] imposed criminal liability upon the appellant, when it was apparent that the appellant did not take part in the conduct of preparing and presenting the forged tax clearance certificate.

6. The court *a quo* grossly erred and misdirected itself on the facts in holding that the evidence showed that the appellant took part in the conduct giving rise to the offence, when all the evidence showed that the appellant was not involved in the creation of the forged documents or the compiling of the tender bid.

7. The court *a quo* grossly erred and misdirected itself on the facts in rejecting the appellant's defence that the forged tax clearance certificate and the forged NSSA clearance certificate were prepared by a consultant who did not work for Blackdeck (Private) Limited, when the State did not rebut such a defence and the totality of the evidence showed it to be true.

8. The court *a quo* grossly misdirected itself in its assessment of the facts by selectively picking items of evidence mentioning the trade name Blackdeck Livestock and Poultry Farming while ignoring that in all such pieces of evidence it is stated that Blackdeck (Private) Limited is the registered entity.

AGAINST SENTENCE

9. The court *a quo* erred in sentencing the appellant to a custodial sentence under circumstances which induce a sense of shock.

10. The court *a quo* erred in sentencing the appellant from the perspective of one who had defrauded money outright when the case before it was about one who defrauded on qualifications only, while providing value upon having been regarded as qualified.

11. The court *a quo* in requiring the appellant to pay restitution in United States dollars when the amount transferred to Blackdeck was in the local currency."

Each ground is now assessed hereunder to determine whether or not it has prospects of success on appeal.

At the hearing of this application Mr *Dzvetero* submitted that grounds of appeal 2, 3 and 4 raised purely questions of law and that in terms of s 44 (2) (a) of the Act the applicant did not require leave to appeal to this Court with regards those grounds of appeal. Mr *Mabhaudhi*, for the respondent, did not make any submissions to the contrary and for that reason Mr *Dzvetero*'s submissions in that regard were unopposed. I find merit in the submissions made by Mr *Dzvetero* and agree that by operation of law, leave to appeal under grounds 2, 3 and 4 is not required.

The rest of the grounds of appeal however raise either questions of fact or of mixed law and fact. The applicant thus requires leave to appeal under those grounds as provided under s 44 (2) (b) of the Act. Under ground (1) the applicant criticised the finding by the court a *quo* to the effect that the tender bid was submitted by Blackdeck Livestock and Poultry Farming. It is argued that the court *a quo* should have found, instead, that the tender bid itself showed that the bid was submitted by Blackdeck (Private) Limited, which used the trade name Blackdeck Livestock and Poultry Farming. This ground has no merit. Documents produced in the court *a quo* clearly show that the tender bid was submitted under the name Blackdeck Livestock and Poultry Farming and not Blackdeck (Private) Limited. The papers did not describe Blackdeck Livestock and Poultry Farming as the trade name of Blackdeck (Pvt) Ltd. The impression given was that Blackdeck Livestock and Poultry Farming was bidding in its own right as an independent entity and not as representing Blackdeck (Pvt) Ltd. Any suggestion to the contrary is not supported by the evidence adduced *a quo*. Ground 8 raises the same complaint, namely, that the court *a quo* failed to find that Blackdeck (Pvt) Ltd was the bidding entity and not Blackdeck Livestock and Poultry Farming (Pvt) Ltd. Again there is not an iota of evidence supporting that claim or the suggestion that the court *a quo* dealt with the evidence selectively in arriving at the finding that it

was Blackdeck Livestock and Poultry Farming that submitted the tender bid. I come to the conclusion that like ground 1, ground 8 does not enjoy any prospects of success on appeal.

GROUNDS 5, 6 AND 7.

These grounds raise essentially the same issue, namely, that the court *a quo* failed to appreciate that the applicant had not participated in the alleged fraudulent activities, had not forged the tax and NSSA clearance certificates and that therefore he could not be found liable in terms of s 277 of the Code. He also denies taking part in the preparation and presentation of the bid documents.

Section 136 of the Code provides as follows:

"**136 Fraud.**
Any person who makes a misrepresentation–
(a) intending to deceive another person or realising that there is a real risk or possibility of deceiving another person; and

(b) intending to cause another person to act upon the misrepresentation to his or her prejudice, or realising that there is a real risk or possibility that another person may act upon the misrepresentation to his or her prejudice; shall be guilty of fraud if the misrepresentation causes actual prejudice to another person or is potentially prejudicial to another person, and be liable to–

(i) a fine not exceeding level fourteen or not exceeding twice the value of any property obtained by him or her as a result of the crime, whichever is the greater; or
(ii) imprisonment for a period not exceeding thirty-five years; or both."

It is clear from the above provision that fraud encompasses participation in a scheme involving intentional misrepresentation causing prejudice to another. The evidence adduced in the court *a quo* established that the applicant actively participated in the tender process, attended meetings with Ministry officials, represented the bidding company during the negotiations leading to the contract, signed the contract documents, received public funds through

Blackdeck (Pvt) Ltd's bank account and personally transferred substantial sums of money out of that account.

The court *a quo* found that the evidence sufficiently linked the applicant to the fraudulent enterprise. It rejected the applicants attempt to shift responsibility to an unnamed consultant and held that the applicant's assertions were improbable, more so in light of the applicant's admitted position as a director and principal representative of the company.

Section 277 of the Code provides as follows:

"**277 Criminal liability of corporations and associations and their members, employees and agents.**

(1) In this section –
"authorised person" means a person referred to in paragraph (b) of subsection (2) or paragraph (b) of subsection (4);
"director", in relation to a corporate body, means a person who –
(a) controls or governs that corporate body, whether lawfully or otherwise; or
(b) is a member of a body or group of persons which controls or governs that corporate body, whether lawfully or otherwise; or
(c) where there is no body or group such as is referred to in paragraph (b), who is a member of the corporate body.

(2) For the purposes of imposing criminal liability upon a corporate body, any conduct on the part of–
(a) a director or employee of the corporate body; or
(b) any person acting on instructions or with permission, express or implied, given by a director or employee of the corporate body; in the exercise of his or her power or in the performance of his or her duties as such a director, employee or authorised person, or in furthering or endeavouring to further the interests of the corporate body, shall be deemed to have been the conduct of the corporate body, and if the conduct was accompanied by any intention on the part of the director, employee or authorised person, that intention shall be deemed to have been the intention of the corporate body.

(3) Where there has been any conduct which constitutes a crime for which a corporate body is or was liable to prosecution, that conduct shall be deemed to have been the conduct of every person who at the time was a director or employee of the corporate body, and if the conduct was accompanied by any intention on the part of the person responsible for it, that intention shall be deemed to have been the intention of every other person who at the time was a director or employee of the corporate body: Provided that, if it is

proved that a director or employee of the corporate body took no part in the conduct, this subsection shall not apply to him or her.

(4) For the purposes of imposing criminal liability upon members and employees of an association of persons which is not a corporate body, any conduct on the part of–

(a) a member or employee of the association; or

(b) any person acting on instructions or with permission, express or implied, given by a member or employee of the association; in the exercise of his or her power or in the performance of his or her duties as such a member, employee or authorised person, or in furthering or endeavouring to further the interests of the association, shall be deemed to have been the conduct of every other person who at the time was a member or employee of the association, and if the conduct was accompanied by any intention on the part of the member, employee or authorised person, that intention shall be deemed to have been the intention of every other person who at the time was a member or employee of the association:

Provided that–

(i) if it is proved that a member or employee of the association took no part in the conduct, this subsection shall not apply to him or her;

(ii) if the association is controlled or governed by a committee or other similar governing body, this subsection shall not apply so as to render criminally liable any person who was not at the time of the conduct a member of that committee or other body.

(5) A person who is criminally liable for any conduct in terms of subsection (3) or (4) shall be liable to be prosecuted and punished personally for the crime concerned.

(6) This section shall not limit any other law which imposes criminal liability upon corporate bodies and associations and their directors, employees and members."

The above provision does not require proof that a director personally forged documents. It is sufficient that, with knowledge, he participated in or authorised conduct constituting the offence. The court *a quo* was satisfied that the applicants' conduct satisfied the requirements of s 277 and found, as a matter of fact, that the applicant had participated in the fraud or at least had fraudulently acted in common purpose with others. In my view, the court *a quo*'s findings cannot be faulted. Grounds 5, 6 and 7 have no merit. There are no prospects of success on appeal with regards those three grounds.

GROUNDS OF APPEAL 9, 10 AND 11.

The above grounds relate to the appeal against the sentence imposed by the court *a quo*. The applicant avers that the sentence induces a sense of shock and that the court *a quo* misdirected itself in treating the applicant as one who had defrauded money "outright" when the applicant had only misrepresented facts as to his company's qualification to participate in the tender process. Under ground 11, the applicant contends that the court *a quo* erred by ordering restitution in the currency of United States dollars instead of the local currency.

In attacking the sentence imposed *a quo*, the applicant disregards the aggravating features that the court *a quo* took into account. This was a fraud involving public funds meant to alleviate poverty across the country. The amounts involved ran into millions of United States dollars or equivalent local currency. The actual prejudice to the fiscus was thus enormous. Forged compliance certificates were used in order to induce Ministry officials to award the tender to the applicant's company. The applicant deliberately misrepresented to the Ministry that his company had capacity to provide the number of goats required. The fraudulent conduct persisted over a prolonged period. The aggravating features clearly outweighed the mitigatory factors. Under the circumstances, the court *a quo* cannot be faulted in determining that a custodial sentence was called for. The sentence imposed was consistent with the sentencing guidelines. The applicant's assertion that the fraud only related to his company's qualification to participate in the tender process has no merit given that large quantities of resources were made available and lost on account of the applicant's failure to meet the required supply, having fraudulently misrepresented its capacity to do so.

The Second Application SC 155/26

Similarly, in assessing the second applicant's prospects of success on appeal, one must examine each of his grounds of appeal and consider its prospects of success. The grounds of appeal are as follows:

GROUNDS OF APPEAL

Ad conviction

1. In convicting the appellant of the offence of fraud as a co-perpetrator with his co-accused, the court *a quo* erred in law and misdirected itself in that its finding that the appellant had the requisite *mens rea* to commit the offence was irrational in that no reasonable court, applying its mind to the totality of the evidence, could ever have found that the appellant had the requisite *mens rea* within the contemplation of s 196A (1) of the Criminal Law (Codification and Reform Act) [*Chapter 9:23*].
2. Having found that the appellant had neither signed the tender documents containing the impugned ZIMRA tax clearance and NSSA compliance certificates nor physically submitted the tender documents nor been one of the official directors of Blackdeck (Pvt) Ltd, the court *a quo* erred in law and misdirected itself in not finding that the appellant could not have been a co-perpetrator within the contemplation of s 196A (1) of the Criminal Law (Codification and Reform Act) [*Chapter 9:23*].
3. Whereas the charge identified the misrepresentation relevant to the alleged fraud to be the submission of the fake ZIMRA tax and NSSA compliance certificates, the court *a quo* erred in law and misdirected itself in convicting the appellant of the offence of fraud on the basis of misrepresentation of facts that were not part of the charge, in that the court *a quo* went on a frolic of its own in finding that what was misrepresented

consisted of stealing the corporate identity of Blackdeck (Pvt) Ltd and capacity to supply goats. (*sic*)

4. As an alternative to 1, 2 and 3 above, the court *a quo* erred in law and misdirected itself in convicting the appellant of the offence of fraud without making any categoric finding on whether or not the acts forming the subject of the alleged offence were committed by the appellant in his personal capacity or by the appellant as a director of a company known as Blackdeck (Pvt) Ltd or by both the appellant and company in question, thereby failing to apply the provisions of s 277 of the Criminal Law (Codification and Reform Act) [*Chapter 9:23*].

Ad sentence

5. The court *a quo* improperly exercised its discretion in respect of sentence in that the sentence it imposed of on effective 12 years imprisonment plus restitution, is so manifestly excessive and so disturbingly inappropriate in all the circumstances of this case as not only to induce a sense of shock but also as an instance of an exercise in irrationality.

The first ground of appeal, against conviction alleges irrationality on the part of the court *a quo* in the manner in which it dealt with the facts in arriving at the conclusion that the applicant had the requisite *mens rea* to commit fraud within the contemplation of s 196 A (1) of the Code. Although Mr *Madhuku*, for the applicant, did not specifically submit that this ground raises a point of law alone that qualifies to be dealt with under s 44 (2) (a) of the Act, it is apparent to me that this ground raises a question of law alone. That being the case, the applicant does not require leave to appeal. For that reason, the applicant is at liberty to appeal on this ground without leave. See *Zvokusekwa* v *Bikita Rural District Council* SC 44/15.

Grounds 2, 3 and 4 raise questions of fact alone or of mixed law and fact. The applicant requires leave to appeal under those grounds. (See s 44 (2) (b) of the Act).

Under ground 2, the applicant avers that the court *a quo* misdirected itself in finding him to have been a co-perpetrator under circumstances where he was not involved with the preparation or submission of the fake tax clearance and NSSA compliance certificates. However, a reading of s 196 A (1) of the Code indicates that the conduct of the actual perpetrator (that is his co-accused, the first applicant) shall be deemed to be the conduct of every perpetrator. It is thus not necessary, as suggested by the applicant, to prove that a co-perpetrator personally committed the act which forms the essential elements of the offence. For that reason, the second ground has no prospects of success on appeal.

The third ground of appeal is to the effect that the court *a quo* went on a frolic of its own in finding that what was misrepresented was theft of the identity of Blackdeck (Pvt) Ltd and its capacity to supply goats whereas the charge preferred only makes reference to the submission of the fake documents and therefore the court *a quo* should have confined itself only to the issue of fake documents. This ground of appeal lacks merit as it was the State case *a quo* that the applicants misrepresented Blackdeck Livestock and Poultry Farming as a duly incorporated company when it was not so duly incorporated. Indeed evidence was led proving that the misrepresentation was through the use of legal papers belonging to Blackdeck (Pvt) Ltd to give the impression that such papers belonged to Blackdeck Livestock and Poultry, itself a non-existent bidding company. In addition overwhelming evidence was led showing how the applicants misrepresented their capacity to supply goats, thereby inducing the Ministry to part with large sums of money. Such evidence cured the defects, if any, in the charge sheet.

In the fourth ground, which is couched as an alternative to ground 1, 2 and 3, the applicant criticizes the court *a quo* for not making the distinction as to whether he was guilty in his personal capacity or as a director of Blackdeck (Pvt) Ltd or both. He states that in failing to make that distinction the court *a quo* failed to properly apply the provisions of s 277 of the Code.

However, the truth of the matter is that the court *a quo* examined the evidence and made the necessary distinction between the applicant's personal liability and his liability as a director. At p 52 of its judgment, the court *a quo* stated that it had found that Blackdeck (Pvt) Ltd was also a perpetrator. It found that while the applicant represented the business interests of Blackdeck (Pvt) Ltd, he was doing so unlawfully because he did not have a resolution by the company authorizing him to act on its behalf. As a result, it drew the inference that the applicant was acting in cahoots with his co-accused in misrepresenting the fictitious company as Blackdeck (Pvt) Ltd.

The court *a quo* found that the applicant attempted to deny liability by hiding behind the corporate veil. It expressed misgivings about the abuse of the corporate veil in cases of fraud and other improper conduct. It ruled that the corporate veil only protects those directors who do not take part in the criminal conduct constituting the offence. It found that the applicant was a willing participant in the misrepresentations of Blackdeck (Pvt) Ltd and therefore must be deemed personally liable in terms of s 277 of the Code. There are no prospects of success on appeal on this ground.

In the fifth ground, the applicant challenges the court *a quo*'s exercise of the discretion bestowed upon it in determining the appropriate sentence to be imposed. He avers that the sentence of imprisonment for an effective period of 12 years was so excessive as to induce a sense of shock. He argues that the court *a quo* had exercised its discretion irrationally.

In determining the question of sentence, the court *a quo* relied on the provisions of the Criminal Procedure (Sentencing Guidelines) Regulations, 2023 (the guidelines). In terms of the guidelines, a fraud is deemed to have been committed in aggravating circumstances, attracting the presumptive sentence of 20 years imprisonment when:

> "(a) The items, funds or property involved were of a considerable value.
> (b) The funds or the items involved were not recovered.
> (c) The offender was in a position of trust.
> (d) The offender was a holder of a public office.
> (e) The offence involved public funds."

In this case, paras (a), (b) and (e) are applicable. The guidelines only require the satisfaction of any one of these conditions for the presumptive sentence of 20 years imprisonment to be considered. That being the case, I see no misdirection or improper exercise of discretion on the part of the court *a quo* in imposing the effective sentence of 12 years imprisonment.

It is settled in our law that an appellate court will not readily interfere with the exercise of discretion by a lower court. An appeal court will only interfere if the lower court acts on a wrong principle or allows extraneous or irrelevant matters to guide or affect it, if it mistakes the facts, if it does not take into account relevant considerations. See *Barros & Anor* v *Chimponda* 1999 (1) ZLR 58 (S).

The court *a quo* did not fall into any of the errors referred to in the *Barros* case *supra*. In my view, the court *a quo* cannot be faulted in the manner in which it dealt with the question of sentence. The appeal against sentence has no prospects of success.

DISPOSITION

In both applications, the grounds attacking the findings of the court *a quo* on questions of fact or of mixed law and fact have no merit. Each applicant has however outlined

some grounds of appeal raising purely questions of law. By operation of law no leave is required to appeal on the basis of such grounds of appeal.

Both applications relate to criminal proceedings. For that reason there will be no order as to costs. Accordingly it is ordered as follows:

"With regards the first applicant Moses Mpofu SC 330/26:

Ad conviction

1. The applicant is at liberty to appeal under grounds 2, 3 and 4 without leave.

2. The application for leave to appeal under grounds 1, 5, 6, 7 and 8 be and is hereby dismissed.

Ad sentence
The application for leave to appeal against sentence be and is hereby dismissed.

With regards the second applicant Mike Chimombe SC 155/26:

Ad conviction

1. The applicant is at liberty to appeal under ground number 1 without leave.

2. The application for leave to appeal under grounds 2, 3, and 4 be and is hereby dismissed.

Ad sentence

The application for leave to appeal against sentence be and is hereby dismissed."

MAVANGIRA JA : I agree

MWAYERA JA : I agree

Antonio & Dzvetero Legal Practitioner, applicant's legal practitioners.

National Prosecuting Authority, respondent's legal practitioners.

Mugiya Law Chambers, applicant's legal practitioners.

National Prosecuting Authority, respondent's legal practitioners.